

the types used in engineering machine shops and viewing rooms, whether for use in such shops or rooms or not.

Wireless valves and similar rectifiers, and vacuum tubes.

Ignition magnetos and permanent magnets.

Arc-lamp carbons.

Hosiery latch needles.

Metallic tungsten, ferro-tungsten and manufactured products of metallic tungsten, and compounds (not including ores or minerals) of thorium, cerium and the other rare earth metals.

All synthetic organic chemicals (other than synthetic organic dyestuffs, colours, and colouring matters imported for use as such, and organic intermediate products imported for their manufacture), analytical re-agents, all other fine chemicals (except sulphate of quinine of vegetable origin) and chemicals manufactured by fermentation processes.

CHAPTER 48.

An Act to repeal the Corn Production Acts, 1917 and 1920, to make provision as to payments under those Acts in respect of the crops of the current year, to provide funds for agricultural development, to promote the formation of joint conciliation committees for the industry of agriculture, and to make certain consequential amendments in section twelve, and to repeal subsection (1) of section fifteen of the Agriculture Act, 1920. [19th August 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. The Corn Production Acts, 1917 and 1920, are hereby repealed as from the first day of October, nineteen hundred and twenty-one :

Provided that, without prejudice to the general application of section thirty-eight of the Interpretation Act, 1889, with regard to the effect of repeals—

(a) This repeal shall not prejudice or affect the power to take any proceedings in relation to

Repeal of
Corn Pro-
duction Acts,
7 & 8 Geo. 5.
c. 46.
10 & 11 Geo. 5.
c. 76, Part I.
52 & 53 Vict.
c. 63.

10 & 11
Geo. 5. c. 76.

payments in respect of the wheat and oats of the year nineteen hundred and twenty-one or such of the powers mentioned in section nine of the Agriculture Act, 1920, as are excepted from the operation of that section ;

- (b) Where on the thirtieth day of September, nineteen hundred and twenty-one, any legal proceedings are pending in England and Wales to which the Agricultural Wages Board or a district wages committee are parties, the Minister of Agriculture and Fisheries shall be substituted in those proceedings for the Board or committee, as the case may be, and the proceedings shall not abate by reason of the substitution ; and
- (c) All powers with respect to the destruction of injurious weeds shall continue to be exerciseable as if such of the provisions of the Corn Production Acts, 1917 and 1920, as are specified in the Schedule to this Act had not been repealed but were continued in force as set out with the necessary modifications in the said schedule ; and
- (d) The body of persons constituted with respect to any area by the Board of Agriculture for Scotland under subsection (2) of section eleven of the Corn Production Act, 1917, shall, notwithstanding this repeal, continue to exercise the powers and duties of the Agricultural Committees for that area under the Agriculture Act, 1920, and under any other enactment, unless and until His Majesty by Order in Council directs that such powers and duties shall be exercised by the Board of Agriculture for Scotland, which direction it shall be lawful for His Majesty to give, and the Board shall continue to have power to constitute such bodies : Provided that before any Order in Council is made under this section a draft thereof shall be laid before each House of Parliament for not less than thirty days on which such House is sitting, and unless both Houses by resolution approve of such draft no further proceedings shall be taken thereon

without prejudice to the making of a new draft Order.

2. The sums to be paid under section one of the Corn Production Act, 1917, to the occupier of land in Great Britain in respect of each acre on which he proves in manner required by that section that wheat or oats have been produced in the year nineteen hundred and twenty-one, shall, subject to the provisoes to that section, be the sums of three pounds and four pounds respectively instead of sums calculated in manner provided by the Corn Production Acts, 1917 and 1920, and shall be payable on the first day of January, nineteen hundred and twenty-two.

Payments in respect of crops of 1921.

3. For the purpose of providing a special fund for promoting agricultural development, including the establishment of scholarships and maintenance grants for the sons and daughters of agricultural workmen and others, there shall, during the financial year ending on the thirty-first day of March, nineteen hundred and twenty-two, be paid out of moneys provided by Parliament the sum of one million pounds.

Provision of funds for agricultural development.

Out of the sum so to be paid as aforesaid the sum of eight hundred and fifty thousand pounds shall be paid to the Development Fund to be applied for the purpose of aiding and developing agriculture in England and Wales in the manner specified in paragraph (a) of subsection (1) of section one of the Development and Road Improvement Funds Act, 1909, other than the extension of the provision of small holdings, and the sum of one hundred and fifty thousand pounds shall be paid to the Agriculture (Scotland) Fund to be applied by the Board of Agriculture for Scotland for the like purpose in Scotland.

9 Edw. 7.
c. 47.

4. Whereas it is expedient that local joint conciliation committees representative of persons (whether owners or occupiers of agricultural land) employing workmen in agriculture and of such workmen should without delay be formed by agreement throughout Great Britain for the purpose of dealing with wages or hours or conditions of employment: Now, therefore—

Establishment of voluntary joint councils of employers and workmen in agriculture.

(1) The Minister of Agriculture and Fisheries as respects England and Wales, and the Board of Agriculture for Scotland as respects Scotland, shall have

power to take such steps as they think best calculated to secure the voluntary formation and continuance of such committees.

(2) The persons who are at the date of the passing of this Act members of a district wages committee for any area as representatives of persons employing workmen in agriculture or of workmen engaged in agriculture shall, until the expiration of two years from that date or until a joint conciliation committee is formed, whichever first happens, be a joint conciliation committee for the purpose of dealing with the matters aforesaid within any part of the said area for which a joint conciliation committee does not exist, and any vacancy occurring among those representatives shall be filled by the appointment of a member by the organisation representing employers or workmen by which the vacating member was nominated. An organisation by which any person who is a member of a district wages committee at the date of passing of this Act was nominated as such may, at any time before the first day of December, nineteen hundred and twenty-one, appoint another person to act in the place of that person as a member of the joint conciliation committee.

(3) Any joint conciliation committee which has agreed upon a rate of wages for any class of persons employed in agriculture in the district or any part of the district for which the committee is formed (except the members of the class for which on account of special circumstances exemption is provided by the agreement), and has agreed as to the period, whether a specified period or a period terminable by notice, during which the rate is to operate, may, if the committee so desires, submit the agreement to the Minister for confirmation, and the Minister may confirm the agreement and cause particulars of the agreed rate, and the agreed period and the date (being such date subsequent to the date of the advertisement as the Minister may determine) from which the rate is to operate to be advertised in the district to which it applies, in such manner as the Minister may think fit, with a view to bringing the terms thereof, as far as practicable, to the knowledge of the persons affected.

(4) Where any rate of wages has been so agreed, confirmed, and advertised, and so long as the agreement

is in operation, it shall be an implied term of every contract for the employment after the specified date of a workman of any class to which the agreement applies (having regard to any exemptions provided by the agreement) that the employer shall pay to that workman wages at not less than the rate payable under the agreement, provided that wages shall not be recoverable under this subsection unless proceedings for such recovery shall have been commenced before the expiration of three months after the date when the workman left the employment, and a person shall not be entitled to recover under this subsection wages for more than three months or for such longer period not exceeding one year as the court in which proceedings are taken for the recovery of the wages shall consider just.

(5) Where any rate of wages has been agreed by a committee and been duly confirmed and advertised as aforesaid, nothing in any contract for the employment of a workman in agriculture shall operate to deprive the workman of his right to receive wages at that rate, except—

- (a) where the committee, or a sub-committee thereof, is satisfied that the contract for payment of wages at a lower rate was, having regard to any special circumstances affecting the workman or to the special terms of the contract, fair and reasonable, and issues a certificate accordingly ; or
- (b) where, on an application by either an employer or a workman for such a certificate, the committee or sub-committee have failed to agree with respect to the matter, and the court in which proceedings are taken for the recovery of wages at the rate agreed by the committee is so satisfied as aforesaid ;

and then only to the extent to which the committee or sub-committee certifies or the court determines that the wages payable to the workman should be at some lower rate than the rate so agreed by the committee.

(6) A joint conciliation committee may appoint an independent person to act as chairman without the power to vote except in respect of any particular matter in

respect of which the committee agrees that the chairman shall have the power to vote.

(7) The representatives of employers and workmen on a joint conciliation committee shall, respectively, have one collective vote on any question.

(8) This section, except subsection (1) thereof, shall not apply to Scotland.

(9) In this section—

(a) The expression “agriculture” includes dairy-farming and the use of land as grazing, meadow, or pasture-land, or orchard, or osier-land, or for market gardens or nursery grounds, but not woodland or woodland nurseries and the expression “agricultural” shall be construed accordingly;

(b) The expression “workmen” includes boys, women, and girls;

(c) The expression “employment” means employment under a contract of service or apprenticeship, and the expressions “employ” and “employer” shall be construed accordingly.

Amendment
of s. 12 of
10 & 11
Geo. 5. c. 76.

5. Any power which, under section twelve of the Agriculture Act, 1920 (which makes provision for the application of that Act to cottages on agricultural holdings), is exercisable in relation to any dwelling-house by a district wages committee or a sub-committee of such a committee may be exercised in Scotland by the sheriff court, and elsewhere by a court of summary jurisdiction, for the district in which the dwelling-house is situate, and for the purpose of compensation under the said section the year's rent of the dwelling-house shall be taken to be the sum of seven pounds and sixteen shillings, or, if it is shown that that sum exceeds an amount equal to fifty-two times the weekly rental value of the dwelling-house let free from rates, then such last-mentioned amount.

Repeal of s. 15 (1)
of 10 & 11 Geo. 5.
c. 76.

6. Subsection (1) of section fifteen of the Agriculture Act, 1920, is hereby repealed.

Short title.

7. This Act may be cited as the Corn Production Acts (Repeal) Act, 1921.

SCHEDULE.

Section 1.

• Provisions of the Corn Production Acts, 1917 and 1920, relating to the destruction of injurious weeds as continued in force.

(1) Where the Minister of Agriculture and Fisheries (in this Schedule referred to as "the Minister") is satisfied that there are injurious weeds to which this Schedule applies growing upon any land, he may serve upon the occupier of the land a notice in writing requiring him to cut down or destroy the weeds in the manner and within the time specified in the notice.

(2) Where, under this Schedule, notice is served on a tenant a copy of the notice shall at the same time be served on the landlord.

(3) Where a notice has been served under this Schedule on the occupier of any land requiring him within a time specified in the notice to cut down or destroy weeds and that person unreasonably fails to comply with the requirements of the notice, he shall on summary conviction be liable, in respect of each offence, to a fine not exceeding twenty pounds and to a further fine not exceeding twenty shillings for every day during which the default continues after conviction :

Provided that—

(a) Proceedings for an offence under this paragraph shall not be instituted except by the Minister; and

(b) The Minister shall be entitled to execute any work specified in the notice and to recover summarily as a civil debt from the person in default the reasonable cost of executing such work in a proper manner, and the right of instituting any such proceedings shall not be prejudiced by the fact that the Minister has executed the work specified in the notice.

(4) Any person authorised in that behalf by the Minister or by any body of persons exercising any powers of the Minister on his behalf may, for the purpose of carrying this Schedule into effect, on the production, if so required, of his authority enter on and inspect any land. The occupier shall, in all such cases, be served with notice of the date on which the inspection is to take place.

If any person prevents or obstructs the entry for the purpose of this Schedule upon any land of any person autho-

rised under this Schedule, he shall be liable on summary conviction to a fine not exceeding twenty pounds.

(5) Every notice required to be served under this Schedule on the occupier of any land may either be served personally on him or sent by registered post to or left at his usual place of abode in the United Kingdom, and, in case any person on whom any such notice is to be served is absent from the United Kingdom, and his usual place of abode in the United Kingdom after diligent inquiry be found, the notice may be served by affixing a copy thereof on some conspicuous part of the land.

(6) The Minister may authorise the Agricultural Committee of any county or borough to exercise on behalf of the Minister any of the powers of the Minister under this Schedule.

(7) Any expenses incurred by the Minister under this Schedule up to an amount approved by the Treasury shall be defrayed out of the moneys provided by Parliament.

(8) The injurious weeds to which this Schedule applies are the following, that is to say, Spear Thistle (*Carduus Lanceolatus* L), Creeping or Field Thistle (*Carduus Arvensis* Curt), Curled Dock (*Rumex Crispus* L), Broad-leaved Dock (*Rumex Obtusifolius* L), and Ragwort (*Senecio Jacobæa* L).

(9) In this Schedule the expression "owner" includes a person entitled for his life or other limited estate, and the expression "occupier" means in the case of any public road the authority by whom the road is being maintained and in the case of unoccupied land the person entitled to the occupation thereof.

(10) This Schedule shall apply to Scotland with the following modifications:—

- (i) The Board of Agriculture for Scotland shall be substituted for the Minister of Agriculture and Fisheries.
- (ii) For the reference to the Agricultural Committee of any county or borough there shall be substituted a reference to the body of persons constituted for any area under the powers specified in paragraph (d) of the proviso to section one of this Act.
- (iii) The provision requiring that proceedings for an offence shall not be instituted except by the Minister shall not apply.

(11) This Schedule shall not apply to Ireland.
